

2d SNT account

Appearance is required for continued hearing on 2d SNT account.

3d SNT account

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Missing notice of hearing. Missing service of notice of hearing.

Clarification is needed: the 3d account shows the trust purchased a vehicle. Such a purchase is ordinarily scheduled as a change in the form of assets. If title was taken in the name of beneficiary, the purchase appears to be an improper distribution; if title was taken in the name of a third party, the purchase appears to be an improper gift of trust assets. If title remains in the trust, the trust continues to hold a valuable corpus, bond remains required, and future accounts will be required.

In light of the low value of estate cash reserves, it is recommended total reasonable attorney fees and costs for all accounts be fixed at \$15,000.00.

2. S-PR-0012062 In Re the Estate of Trocha, Robert John

Missing waiver of personal representative fees by Madison Trocha, former joint personal representative of the estate.

Clarification is needed: the estate is a non-cash estate. Petitioner should show how requested attorney fees are to be paid. The court will not ordinarily approve fees where there are no assets to pay fees.

3. S-PR-0012117 In Re the Estate of Lewis, Edward

Appearance is required for continued hearing on petition for final distribution.

Missing corrected I&A referred to in ¶ 8 of the petition.

Clarification is needed: the estate is a non-cash estate. Petitioner should show how requested attorney fees are to be paid. The court will not ordinarily approve fees where there are no assets to pay fees.

The request to approve distribution of the estate must be denied. Petitioners admit distributing the entirety of the estate contrary to decedent's will (which limits distribution to decedent's trust) and to the underlying trust (under which Steven Lewis's trust share is preserved for his children (see Art. 12 §§ 1–2). See also Declaration of Harake, filed June 20, 2023, at 1:26–28. The court should not authorize testate distribution contrary to the controlling testamentary instruments.

It is recommended the petition be deemed one to terminate administration under Prob.C. § 12251 as there are no assets in the estate from which to award fees or which can

be distributed to any person. After termination of administration, the parties would be free to address any outstanding concerns (such as fees) as they may privately determine.

4. S-PR-0012567 In Re the Estate of Petruncola, David William

Petition for final distribution is recommended for approval as prayed.

5. S-PR-0012970 In Re the Lee-Tong Trust & Ching Y Lee Bypass Trust

Appearance is required for continued hearing on petition re breach of trustee duty and for other relief.

6. S-PR-0013137 In Re the Estate of Keaton, Lee Russell

Clarification is needed: the report schedules show sale of coins, knives, airgun pellets and similar items, solar panels, yard items, Hot Wheels, and many other items which were never inventoried to the estate. All assets of the estate must be inventoried and appraised as required by law.

7. S-PR-0013381 In Re the Marie Mickle Rev Trust

Petition to compel trustee account and for other relief

Appearance is required for continued hearing on petition to compel trustee account and for other relief.

Request / petition re disclosure of information by former trustee and for temporary restraining order

Appearance is required for hearing on request / petition re disclosure of information by former trustee and for other relief.

Missing notice of hearing. Missing proof of service of notice of hearing.

Request to release subpoenaed records to petitioner

It appears this request was previously granted and is now moot.

Damages hearing

Appearance is required for hearing as previously ordered.